

defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]” (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.)

However, under the sham pleading doctrine, “admissions in an original complaint... remain within the court’s cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff’s case will not be accepted.” (*Lockton v. O’Rourke* (2010) 184 Cal.App.4th 1051, 1061.) The purpose of the doctrine is to “enable the courts to prevent an abuse of process. [Citation.]” (*Hanh v. Mirda* (2007) 147 Cal.App.4th 740, 751.) “[W]here a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings,” the court may examine the prior complaint to ascertain whether the amended pleading is merely a sham. (*Owen, supra*, 198 Cal.App.3d at p. 384.)

Because paragraph 19 of the original petition does not state the date the trustee’s notice or a copy of the trust were received by Petitioner, the court finds that even when paragraph 19 is considered, the court cannot determine that the trust invalidation claim is untimely from the face of the Amended Petition.

Respondent also argues that, during his lifetime, Decedent was the subject of a conservatorship in docket 22PR193873. In that case, Petitioner, Respondent, and the Public Guardian on behalf of Decedent entered into a stipulation and order involving Decedent’s estate plan. In that stipulation and order, the parties agreed to void an estate plan created for Decedent in December 2022 by the firm Wong & Associates and reinstate the 2022 version of the trust and other documents drafted in February 2022 by Decedent’s estate planning attorneys at Dean Jones, LLP. (Respondent’s Request for Judicial Notice, Ex. 1 [Stipulation and Order], pp. 2:21-5:9.) Petitioner is now seeking to invalidate the 2022 trust via this cause of action. Respondent contends that she is judicially estopped from doing so.

“The doctrine of judicial estoppel ... is invoked to prevent a party from changing its position over the course of judicial proceedings when such positional changes have an adverse impact on the judicial process. ... Judicial estoppel is ‘intended to protect against a litigant playing fast and loose with the courts. [Citation.]’” (*Filtzer v. Ernst* (2022) 79 Cal.App.5th 579, 588, internal quotation marks omitted.) The burden of establishing that judicial estoppel applies is on Respondent as the party invoking it. (*Ibid.*)

“The doctrine applies when (1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” (*Blix Street Records, Inc. v. Cassidy* (2010) 191 Cal.App.4th 39, 47, internal citations and quotation marks omitted.) Judicial estoppel is an extraordinary remedy to be invoked only when a party’s inconsistent behavior will result in a miscarriage of justice. (*Ibid.*)

Respondent has not attempted to grapple with the above elements and the stipulation. The stipulation states, “the Trust . . . [is] reinstated and shall continue in full force and effect.” Thus, while recognizing that the February 2022 estate plan is in effect, the stipulation does not

specifically indicate that Petitioner acknowledges its validity. Though Petitioner's belief in the validity of the Trust could be inferred from the stipulation, given the extraordinariness of the remedy of judicial estoppel any ambiguity or doubt must be construed in Petitioner's favor. Because one cannot say that the stipulation is totally inconsistent with Petitioner's current claim of invalidity, judicial estoppel does not apply.

Finally, Respondent contends that Probate Code section 21611, subdivision (b) prevents Petitioner from seeking recognition as an omitted spouse because the 2022 version of the trust makes her a beneficiary. "The spouse shall not receive a share of the estate under Section 21610 if any of the following is established: . . . The decedent provided for the spouse by transfer outside of the estate passing by the decedent's testamentary instruments and the intention that the transfer be in lieu of a provision in said instruments is shown by statements of the decedent or from the amount of the transfer or by other evidence." (Prob. Code, § 21611, subd. (b).) The parties disagree over whether the bequest to Petitioner in the 2022 trust qualifies as "providing for" Petitioner because Petitioner did not receive an "equivalent" bequest under the terms of the trust. The court need not determine whether a bequest that is not equivalent to what an omitted spouse could receive under Probate Code section 21610 is sufficient to constitute "providing for" the omitted spouse because this cause of action seeks to invalidate the 2022 trust and then requests a finding that a prior version of the trust did not provide for Petitioner such that she is an omitted spouse. (See Amended Petition, ¶ 66 ["Petitioner respectfully requests that the Court find the Amendment invalid, and, because Petitioner was not a beneficiary of the original Trust (she was not married to Decedent) that she be recognized as an omitted spouse under Probate Code § 21610."].) Thus, this cause of action, by its own terms does not rely on the argument that the bequest in the 2022 trust is not equivalent to what Petitioner could have received as an omitted spouse. For the same reason, Respondent's argument that the 2022 trust makes Petitioner a beneficiary and therefore she is not an omitted spouse also fails.

The demurrer is OVERRULED as to the cause of action for invalidation of trust as omitted spouse.

C. Motion to Strike

Respondent's motion to strike seeks to strike the entirety of the Amended Petition on the ground that it is untimely. The motion also seeks to strike portions of the Amended Petition as will be discussed further below.

Respondent contends that the Amended Petition is untimely because it had to be filed within the time Petitioner had to oppose his prior demurrer and motion to strike. Section 472, subdivision (a) provides, in pertinent part, "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike."

Respondent's prior demurrer and motion to strike were set to be heard on February 4, 2026. But, when Petitioner filed her Amended Petition on January 29, 2026, the court found the demurrer and motion to strike moot. Respondent contends that the Amended Petition had to be filed by January 22, 2026, the date Petitioner's opposition was due. (See § 1005, subd. (b))

[opposition must be filed nine court days before hearing].) The court declines to strike the Amended Petition on this ground. (See § 436 [“The court may . . . strike”]; see also *Colden v. Broadway State Bank*, *supra*, 11 Cal.App.2d at p. 429 [motion to strike is addressed to the sound discretion of the court].) Notably, Respondent did not object to the court’s tentative ruling finding the prior demurrer and motion to strike moot and Respondent establishes no prejudice flowing from the court allowing the Amended Petition to proceed. The motion is DENIED to the extent it seeks an order striking the entirety of the Amended Petition.

The motion is DENIED AS MOOT to the extent it seeks to strike the IIEI cause of action as the court has sustained the demurrer to that cause of action without leave to amend.

Respondent repeats the arguments he made in the demurrer with respect to the causes of action for buyout of Petitioner’s life estate, caregiver compensation, and the transfer on death account. The court has rejected these arguments above.

The motion also targets the request in the Amended Petition for double damages under Probate Code section 859. (Amended Petition, ¶¶ 55-59, prayer for relief ¶ 7.) Respondent’s argument on this point is premised on the demurrer being sustained to Petitioner’s causes for financial elder abuse and IIEI causes of action and the demurrer has been sustained to all three causes of action with leave to amend. Petitioner contends that the Amended Petition also asserts that Respondent failed to account and breached his fiduciary duties but the Amended Petition contains no standalone cause of action for breach of fiduciary duty and Probate Code section 859 requires a bad faith taking of property, thus, failing to account standing alone is insufficient. The motion to strike is GRANTED as to the Probate Code section 859 allegations (Amended Petition, ¶¶ 55-59, prayer for relief ¶ 7) WITH 20 DAYS’ LEAVE TO AMEND.

Respondent also challenges Petitioner’s request for attorney fees pursuant to unspecified portions of the Probate Code and Welfare and Institutions Code. (See Amended Petition, prayer for relief ¶ 9.) Petitioner contends that the request is proper under Probate Code section 859. But, as discussed above the motion is granted as to the Probate Code section 859 allegations. Thus, the additional separate request for attorney fees on the same basis is also subject to the motion to strike. The motion to strike is GRANTED as to paragraph 9 of the prayer for relief WITH 20 DAYS’ LEAVE TO AMEND.

Finally, Respondent seeks to strike allegations regarding Petitioner’s entitlement to the Dry Creek Property. Nowhere in the notice of motion or supporting documents does Respondent explain where these allegations are located. (See Cal. Rules of Court, rule 3.1322(a) [“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.”].) Accordingly, the motion to strike is DENIED as to those allegations.

Kang’s Demurrer and Motion to Strike Amended Petition in Docket 23PR194562

A. Kang’s Request for Judicial Notice

Kang requests judicial notice, in connection with both the demurrer and the motion to strike, of (1) the Petition for Orders: 1. Fiduciary Financial Elder Abuse (Welfare & Institutions Code § 15600, et seq.); 2. Breach of Fiduciary Duty; 3. Conversion; 4. Constructive Trust; and 5. Undue Influence, filed by Respondent in docket 25PR199269 and

(2) Decedent's and Petitioner's marriage license and certificate. The request is GRANTED. (Evid. Code, § 452, subds. (c), (d).)

B. Demurrer

Kang frames the "causes of action in the Amended Petition somewhat differently from Respondent. He addresses an undue influence cause of action, two financial elder abuses causes of action (one alleging acts committed against Decedent and one against Petitioner), one for IIEI, an omitted spouse claim, and a claim for buyout of Petitioner's life estate.⁶

i. Undue Influence Cause of Action

At the outset, the court notes that it is not entirely clear if the Amended Petition is attempting to state a cause of action for undue influence or if the undue influence language is meant to be part of the financial elder abuse claims. (See Amended Petition, ¶ 22 [stating that undue influence is a form of financial elder abuse].) To the extent it is a cause of action, the undue influence claim alleges that Respondent and Kang used coercive tactics to control Decedent's finances and caused Decedent to change his estate plan so that it did not provide for Petitioner. (Amended Petition, ¶¶ 29-38.)

Kang asserts that in *Rice v. Clark* (2002) 28 Cal.4th 89, 97, the California Supreme Court held that undue influence is shown when "(1) the person alleged to have exerted undue influence had a confidential relationship with the testator; (2) the person actively participated in procuring the instrument's preparation or execution; and (3) the person would benefit unduly by the testamentary instrument." (Kang Demurrer MPA, p. 6:19-23.) He contends that he is not alleged to have been in any kind of fiduciary relationship with Decedent or Petitioner. Rather, he is merely accused of selling a life insurance policy to Decedent and that because he had no role in procuring the 2018 trust or the 2022 trust amendment and does not stand to gain from either the 2018 trust or the 2022 amendment, the demurrer should be sustained.

Kang's statement of the law is somewhat of a misstatement. In the portion of *Rice v. Clark* Kang cites, the court was discussing the *presumption* of undue influence: "Although a person challenging the testamentary instrument ordinarily bears the burden of proving undue influence ([Prob. Code,] § 8252), *this court and the Courts of Appeal have held that a presumption of undue influence, shifting the burden of proof, arises upon the challenger's showing that* (1) the person alleged to have exerted undue influence had a confidential relationship with the testator; (2) the person actively participated in procuring the instrument's preparation or execution; and (3) the person would benefit unduly by the testamentary instrument." (*Rice v. Clark, supra*, 28 Cal.4th at pp. 96-97, italics added.) It appears that Petitioner is attempting to rely on the presumption of undue influence. (See Amended Petition, ¶ 24.) To the extent she is intending to invoke the presumption, she must state the requisite facts to do so. Accordingly, the demurrer is SUSTAINED to the undue influence cause of action on the ground that Petitioner has not pleaded facts showing that a fiduciary relationship between Kang and Decedent or Kang and Petitioner, that Kang took action to procure the 2018

⁶ Kang also appears to group the buyout of life estate, compensation for caregiving services, and

distribution of E-Trade account claims into one accounting cause of action. (See Memorandum of Points and Authorities in Support of Respondent Philemon Hyunwok Kang's Demurrer to Amended Petition ("Kang Demurrer MPA"), p. 2, fn. 1.)

trust or 2022 amendment, or that Kang stands to benefit from those documents because the allegations are too conclusory to establish these elements.

Kang requests that the demurrer be sustained without leave to amend. But, “[i]f the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment. [Citations.]” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) Kang has not shown that the undue influence cause of action cannot be amended to state a valid claim. Accordingly, the demurrer is SUSTAINED to the undue influence cause of action WITH 20 DAYS’ LEAVE TO AMEND.

ii. Financial Elder Abuse Causes of Action

Kang raises similar arguments to Respondent Tanaka as to the financial elder abuse causes of action. Specifically, he contends that it cannot be determined what actions he took because of impermissible “group pleading” and that Petitioner has failed to adequately plead that she was an elder at the time of the alleged wrongful actions. These arguments are well-taken for the reasons discussed above in connection with Respondent’s demurrer. Kang’s demurrer is SUSTAINED as to the two financial elder abuse causes of action WITH 20 DAYS’ LEAVE TO AMEND.

iii. The IIEI Cause of Action

Kang repeats Respondent’s argument that the IIEI cause of action must fail where there is an adequate probate remedy. The court SUSTAINS the demurrer to the IIEI cause of action WITHOUT LEAVE TO AMEND on that ground. For this reason, the court need not address Kang’s remaining arguments as to this cause of action.

iv. The Omitted Spouse Cause of Action

Kang asserts that the omitted spouse cause of action fails because Petitioner was provided for outside of the trust and her assertion that an “equivalent” provision outside the of the trust is unnecessary. While Kang provides authority that an equivalent provision is not required, (see *Estate of Bridler* (1958) 165 Cal.App.2d 486, 488), he does not identify how Petitioner was provided for outside of the trust. He points to nowhere in the petition where Petitioner pleads that she received a gift outside of the trust nor does he request judicial notice of any item from which the court could conclude that she received such a gift. To the extent Kang is referring to the life estate, as discussed above, this cause of action seeks to invalidate the 2022 trust and then requests a finding that a prior version of the trust did not provide for Petitioner such that she is an omitted spouse. (See Amended Petition, ¶ 66 [“Petitioner respectfully requests that the Court find the Amendment invalid, and, because Petitioner was not a beneficiary of the original Trust (she was not married to Decedent) that she be recognized as an omitted spouse under Probate Code § 21610.”].) Thus, the omitted spouse cause of action, by its own terms does not rely on the argument that the bequest in the 2022 trust is not equivalent to what Petitioner could have received as an omitted spouse.

The court also rejects Kang’s argument that the stipulation bars Petitioner from raising this claim for the reasons discussed above in connection with Respondent’s demurrer.

Kang’s demurrer is OVERRULED as to the omitted spouse cause of action.

v. The Life Estate Buyout Claim

As to the life estate buyout claim, Kang contends that the trust does not provide for such a remedy, it only provides Petitioner with a life estate in the real property. The court rejects this argument for the same reasons expressed above in connection with Respondent's demurrer. The demurrer is **OVERRULED** as to the buyout of Petitioner's life estate cause of action.

vi. Statute of Limitations

Kang contends that Petitioner's claims are time-barred because a trust contest may only be filed within 120 days of the service of the notice under Probate Code section 16061.7 or within 60 days after receipt of the trust instrument, whichever is later. (Prob. Code, § 16061.8.) It is not clear to which cause(s) or action this argument is directed. The court rejects this argument for the same reasons discussed above in the context of Respondent's demurrer. The demurrer is **OVERRULED** to the extent it relies on the statute of limitations argument.

C. Motion to Strike

Kang asserts that the entire Amended Petitioner should be stricken because it was untimely filed because it was not filed until after the time to file an opposition to Kang's prior demurrer had passed. The court declines to strike the Amended Petition on this ground for the reasons discussed above in connection with Respondent's motion to strike.

Kang also moves to strike paragraphs 48 through 54 (the IIEI cause of action) and prayer for relief paragraph 4 because an IIEI claim is not cognizable when there is adequate relief in probate. The motion is **DENIED AS MOOT** as to these paragraphs because Kang's demurrer was sustained to the IIEI cause of action.

Finally, Kang moves to strike paragraphs 55 to 59 and prayer for relief paragraphs 7 and 9, which he contends state a claim for claim for double damages and attorneys fees under Probate Code section 859, but he asserts they are lacking in factual support and are not legally cognizable. Kang's motion to strike paragraphs 55 to 59 and prayer for relief paragraphs 7 and 9 is **GRANTED WITH 20 DAYS' LEAVE TO AMEND**.

Respondent Tanaka's Demurrer and Motion to Strike Objection in Docket 25PR199269

A. Respondent's Request for Judicial Notice

In support of the demurrer and motion to strike in docket 25PR199269, Respondent requests judicial notice of several of the same documents for which it was requested above in connection with the motions in docket 23PR194562. The court **GRANTS** the request for judicial notice in its entirety with the same caveat noted above.

B. Demurrer

Respondent⁷ demurs to paragraphs 15 through 41 of the Objection arguing that "to the extent [they are] construed as purported causes of action or claims for affirmative relief," they fail to state sufficient facts or are otherwise subject to demurrer on various grounds stated in section 430.10. He further demurs to the affirmative defenses stated in paragraphs 44 through

⁷ The court understands that, with respect to the motions filed in docket 25PR199269, Respondent is in the role of the petitioner and Petitioner is in the role of the respondent. However, the court will continue to refer to the parties as provided above.

47 and 49 through 53 as stating insufficient factual matter to meet the pleading standard for affirmative defenses.

Petitioner argues that a demurrer to an objection in probate is procedurally improper. She concedes that Probate Code section 1000, subdivision (a) provides that where there is no applicable probate rule, the rules of civil procedure apply. But, she contends that demurrers can only be used to target complaints, cross-complaints, and answers. She points to section 430.30, which provides:

- (a) When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading.
- (b) When any ground for objection to a complaint or cross-complaint does not appear on the face of the pleading, the objection may be taken by answer.
- (c) A party objecting to a complaint or cross-complaint may demur and answer at the same time.

Petitioner is correct that the statutes governing demurrers do not mention expressly probate objections. But, they also do not mention probate petitions, yet demurrers may be filed to challenge petitions in probate. (*Goebner v. Superior Court* (2025) 110 Cal.App.5th 1105, 1111.) Accordingly, in the absence of an authority indicating that demurrers do not apply to probate objections, the court will reach the merits of the demurrer.

Respondent contends that paragraphs 15 through 41 are subject to demurrer to the extent they can be construed as causes of action. Paragraphs 15 through 41 generally assert that Respondent committed financial elder abuse against Decedent and Petitioner and caused Decedent to change his estate plan. Although the court disagrees that paragraphs 15 through 41 cannot be read to constitute causes of action because the Objection does not seek any relief based on those paragraphs, if Petitioner is intending to assert a defense based on paragraphs 15 through 41, she must make that clear. Accordingly, the demurrer to paragraphs 15 through 41 of the Objection is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND.

Respondent next argues that the affirmative defenses in paragraphs 44 through 47 and 49 through 53 state insufficient factual matter to meet the pleading standard for affirmative defenses. The affirmative defenses raised in those paragraphs include (1) the first affirmative defense of failure to state a claim, (2) the second affirmative defense of unclean hands, (3) the third affirmative defense, entitled "Consent and Authorization[.]" (4) the fourth affirmative defense, entitled "Marital and Community Property[.]" (5) the sixth affirmative defense of unjust enrichment, (6) the seventh affirmative defense entitled "Waiver and Acquiescence[.]" (7) the eighth affirmative defense of estoppel, (8) the ninth affirmative defense entitled "Lack of Reasonableness[.]" and (9) a second affirmative defense labelled as the ninth affirmative defense entitled "Against Public Policy[.]"

"A demurrer to an answer may be taken to the whole answer or to any one or more of the several defenses set up in the answer." (§ 430.50, subd. (b).) "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense; (b) The answer is uncertain. As used in this subdivision, 'uncertain'

includes ambiguous and unintelligible; and (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.” (§ 430.20.)

“The answer to a complaint shall contain: (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. (2) A statement of any new matter constituting a defense.” (§ 431.30, subd. (b).) “Such ‘new matter’ is also known as ‘an affirmative defense.’ [Citation.]” (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812.) “The defenses shall be separately stated, and the several defenses shall refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (§ 431.30, subd. (g).)

The court notes that it has been stated that “[a]ffirmative defenses must not be pled as ‘terse legal conclusions,’ but rather ... as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’ ” [Citation.]” (*Quantification Settlement Agreement Cases, supra*, 201 Cal.App.4th 758, 812-813, quoting *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.)

“However, ‘[n]o error or defect in a pleading is to be regarded unless it affects substantial rights.’ [Citations.] The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240 (*Harris*).) In *Harris*, the California Supreme Court held that the following language in an answer was sufficient to notify the defendant of the allegations against it: “ ‘[a]ny alleged adverse employment actions of which plaintiff complains ... were not based on plaintiff’s gender and/or sex, pregnancy or any other alleged discriminatory practice, but instead were based on one or more legitimate nondiscriminatory reasons. Nor were any of the employment actions of defendant taken under pretext.’ ”

Here, the challenged affirmative defense allegations are similar. For example, the third affirmative defense alleges, “As a separate and distinct affirmative defense to the Petition and each cause of action therein, Respondent alleges that any transactions or conduct alleged occurred, if at all, with Decedent’s knowledge, consent, and authorization during his lifetime. Conduct undertaken with consent cannot, as a matter of law, constitute wrongful use, undue influence, or financial elder abuse.” Taking into account the allegations raised in the petition itself and the factual matter contained in paragraphs 15 through 41 of the Objection, this is sufficient to put Respondent on notice as to Petitioner’s affirmative defense.

The demurrer to paragraphs 44 through 47 and 49 through 53 of the Objection is **OVERRULED**.

The demurrer is **SUSTAINED** as to paragraphs 15 through 41 of the Objection **WITH 20 DAYS’ LEAVE TO AMEND** and **OVERRULED** as to paragraphs 44 through 47 and 49 through 53 of the Objection.

C. Motion to Strike

Respondent moves to strike portions of Petitioner’s Objection. First, Respondent seeks to strike paragraphs 15 through 41 on the ground that they are improperly seeking affirmative relief in an objection. (§ 431.30, subd. (c) [“Affirmative relief may not be claimed in the

answer.”).) This portion of the motion to strike is MOOT as the court has sustained the demurrer to those same paragraphs of the Objection.

Next, Respondent seeks to strike “[a]ny headings or subheadings introducing, incorporating, or relying upon the allegations in ¶¶ 15-41 (including references to financial elder abuse or IIEI asserted as affirmative claims)[,]” and “[a]ny request for affirmative relief (including damages or tort-type remedies) to the extent premised on or derived from ¶¶ 15-41[.]” (Notice of Motion, p. 2:1-5.) To the extent this argument is not addressed by the ruling on the demurrer, it is rejected because Respondent has not complied with Rules of Court, rule 3.1322(a), which provides, in pertinent part, “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” Respondent must adequately identify the portions of the Objection he seeks to strike, rather than leaving it to the court to determine to what extent the allegations might be derived from other allegations.

Respondent also moves to strike “[t]he ‘Respondent objects...’ language and other argumentative, demurrer-style legal argument inserted in lieu of admissions/denials in Wang’s paragraph-by-paragraph responses, including those identified in the Memorandum of Points and Authorities (e.g., responses to the petition ¶¶ 20, 21, 75, 79, 80, 84, 95, 103, 110, 115, and 118), and including any embedded assertions of estoppel, statute of limitations, and laches not separately stated as affirmative defenses and not pleaded with ultimate facts as ‘new matter.’ CCP §§ 431.30(b)-(d), (f), 436(a)-(b).” (Notice of Motion, p. 2:6-12.) Within the body of the motion, Respondent indicates that this objection language appears at paragraphs “20 (Objection, p. 12:22-26), 21 (Objection, p. 12:28-13:2), 75 (Objection, p. 15:19-26), 79 (Objection, p. 17:3-18:2), 80 (Objection, p. 18:12-20), 84 (Objection, p. 18:25-19:25), 95 (Objection, p. 20:16-21:16), 103 (Objection, p. 22:8-16), 110 (Objection, p. 23:2-10), 115 (Objection, p. 23:19-24:19), and 118 (Objection, p. 25:8-26:2).” (Memorandum of Points and Authorities, p. 6:8-11.)

Here, the Objection includes a recitation of whether Petitioner admits or denies the allegations in the petition, paragraph by paragraph. (See § 431.30, subd. (f) [“The denials of the allegations controverted may be stated by reference to specific paragraphs or parts of the complaint; or by express admission of certain allegations of the complaint with a general denial of all of the allegations not so admitted; or by denial of certain allegations upon information and belief, or for lack of sufficient information or belief, with a general denial of all allegations not so denied or expressly admitted.”].) However, in addition to simply admitting or denying the allegations, portions of the Objection state various “objections” to the allegations in the petition as well. For example, as to paragraph 75 of the petition, the Objection states, among other things, “Respondent denies the allegations in Paragraph 75 of Petitioner’s Petition. Respondent objects to this paragraph on the grounds that it is immaterial, irrelevant, conclusory, and fails to state facts sufficient to constitute a cause of action. Respondent further objects that the allegations are legally defective to the extent they are premised on a ‘purported’ marriage or similar formulation, where Petitioner has already admitted in paragraphs 19-21 of the Petition that the marriage between Respondent and Decedent was valid as certified by a marriage certificate in Santa Clara County. Having admitted the existence of a valid marriage, Petitioner is estopped from advancing internally inconsistent allegations predicated on the absence, defect, or uncertainty of marital status.” (Objection, p. 15:18-26.)

Because Respondent provides no authority explicitly indicating that such objections are improper within a probate objection or answer, the court declines to strike these allegations. (See § 436 [“The court may . . . strike”]; see also *Colden v. Broadway State Bank*, *supra*, 11 Cal.App.2d at p. 429 [motion to strike is addressed to the sound discretion of the court].) Notably, some courts have noted, without discussion, that answers have stated defenses of failure to state a claim. (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1150; *Fireman’s Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1141.) Thus, it appears that pleading such matter in answers is somewhat common.

Within the context of the discussion regarding the “objects” language, Respondent also states, “Tanaka also seeks to strike any embedded assertions of estoppel, statute of limitations, or laches within those responses to the extent they are not separately stated as affirmative defenses and not pleaded with ultimate facts as ‘new matter.’ CCP §§ 431.30(b)-(d), (f), 436(a)-(b).” Again, Respondent is required to identify the exact portions of the Objection he is seeking to strike. (Cal. Rules of Court, rule 3.1322(a); *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [stating that the trial court is not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Although not mentioned in the notice of motion specifically, Respondent further seeks to strike mention of the name “Phil” in the Objection. The Objection states initially, “Upon information and belief Petitioner assumed the role of trustee on April 18, 2023. Concerns have arisen regarding the involvement of Petitioner and Phil Kang (‘Phil’) in the management of Decedent’s affairs both before and after his death on November 25, 2024.” (Objection, ¶ 8.) Thereafter, it goes on to mention actions taken by Phil throughout the Objection. The court declines to strike these references as they provide background regarding Petitioner’s version of the events.

The motion to strike the Objection is DENIED in its entirety.

CONCLUSION

Respondent’s demurrer in docket 23PR194562 is SUSTAINED IN PART AND OVERRULED IN PART. The demurrer is SUSTAINED as to the two financial elder abuse causes of action, the cause of action for caregiver services, and the pay on death account cause of action WITH 20 DAYS’ LEAVE TO AMEND. The demurrer is SUSTAINED as to the IIEI cause of action WITHOUT LEAVE TO AMEND. The demurrer is OVERRULED as to all other causes of action. The court requests that any second amended petition Petitioner may file clearly label the causes of action as such.

Respondent’s motion to strike in docket 23PR194562 is GRANTED IN PART AND DENIED IN PART. The motion to strike is GRANTED as to the Probate Code section 859 allegations and paragraphs 7 and 9 of the prayer for relief WITH 20 DAYS’ LEAVE TO AMEND. The motion to strike is DENIED in all other respects.

Kang’s demurrer in docket 23PR194562 is OVERRULED as to the omitted spouse cause of action and to the extent it relies on a statute of limitations argument. It is SUSTAINED WITHOUT LEAVE TO AMEND as to the IIEI cause of action. Kang’s

demurrer is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND as to the undue influence and financial elder abuse causes of action.

Kang's motion to strike in docket 23PR194562 is GRANTED WITH 20 DAYS' LEAVE TO AMEND paragraphs 55 to 59 and prayer for relief paragraphs 7 and 9. It is DENIED in all other responses.

Respondent's demurrer in docket 25PR199269 is SUSTAINED as to paragraphs 15 through 41 with 20 DAYS' LEAVE TO AMEND and otherwise OVERRULED. The motion to strike in docket 25PR199269 is DENIED in its entirety.